

Comprehensive Legal Assessment: Establishing Criminal Co-Perpetration and Delictual Liability of a De Facto Entity Operator

The assertion that there is no immediate basis to pursue a de facto operator civilly due to a lack of formal contractual privity is a legally accurate reflection of standard obligations under Polish civil law governing strict contractual relationships (*ex contractu* liability). In the present factual matrix, the formal contractual bond regarding the 155,000 PLN transaction exists exclusively between the purchaser and the registered entity, namely Mateusz Szklarski's single-member business activity (Jednoosobowa Działalność Gospodarcza, hereafter JDG). However, this formalistic perspective represents only a narrow slice of the Polish legal framework. The law provides potent, robust mechanisms designed specifically to bypass such corporate and contractual barriers when the underlying transaction is tainted by intentional deceit. This bypassing mechanism operates through the doctrines of tort law (*odpowiedzialność deliktowa*) and criminal restitution.

This report delivers an exhaustive, element-by-element legal analysis of the pathways required to establish criminal co-perpetration against the de facto operator ("Waldek"). It maps the existing evidentiary record to the strict statutory elements of economic fraud under the Polish Penal Code (*Kodeks karny*, hereafter KK). Furthermore, it constructs the precise architectural framework of the "civil bridge"—the legal mechanism that translates a criminal finding or tortious act into joint and several civil liability, thereby enabling full financial recovery directly from the personal assets of the de facto operator, regardless of who issued the formal invoice.

Part I: The Criminal Theory Against the De Facto Operator

To successfully penetrate the corporate veil of the JDG and establish the personal liability of the individual orchestrating the transaction on a day-to-day basis, the prosecutorial and investigative focus must center on the framework of economic fraud defined in Article 286 § 1 KK, operating in strict conjunction with the phenomenal forms of committing a crime codified in Article 18 KK.

The Statutory Anatomy of Fraud (Art. 286 § 1 KK)

Article 286 § 1 KK criminalizes the intentional act of leading another person to an unfavorable disposition of their own or a third party's property by misleading them, or by exploiting their pre-existing mistake or their inability to properly understand the undertaken action, executed with the direct intent to achieve a financial benefit.¹

The jurisprudence of the Polish Supreme Court consistently reinforces that fraud is a common

crime (*przestępstwo powszechne*). This classification signifies that the offense can be committed by absolutely any person capable of bearing criminal responsibility.³ The perpetrator does not need to be a formalized party to the commercial contract, nor do they need to be the registered owner of the business entity utilized to execute the transaction. The statutory requirement centers on the act of deception and the subsequent disposition of property, not on the formal legal standing of the deceiver within the commercial registry. Furthermore, the element of "financial benefit" (*korzyść majątkowa*) requires careful interpretation. The law does not mandate that the financial benefit must accrue directly to the personal estate of the perpetrator who executes the deception. The subjective intent to achieve a financial benefit "for another person" or another legal entity—in this scenario, channeling the funds into Mateusz's JDG bank account—perfectly fulfills the statutory requirement of the direct directional intent (*zamiar bezpośredni kierunkowy*) required for a conviction under Article 286 § 1 KK.⁴ The Supreme Court has clarified that elements of the objective side of fraud must simply be encompassed by the perpetrator's consciousness and will; they must desire to utilize a specific method of deceit to generate an economic gain, irrespective of the final destination of the misappropriated funds.⁵

The objective side (*actus reus*) of the crime of fraud encompasses three alternative methods of execution. In analyzing the present factual matrix, the primary focus lies on *wprowadzenie w błąd* (active deception) and *wyzyskanie błędu* (exploiting a pre-existing mistake).¹ Active deception involves creating a false representation of reality in the victim's mind regarding circumstances that are decisive for the disposition of property. If the victim voluntarily transfers the funds based on a false premise orchestrated or maintained by the perpetrator, the element of detrimental disposition of property is satisfied.³ The Polish legal doctrine explicitly rejects the defense that the victim was naïve or could have avoided the error by exercising greater caution; the focus remains strictly on the perpetrator's deceptive actions.²

Co-Perpetration and Control Over the Act (Art. 18 § 1 KK)

The primary and most robust avenue for holding Waldek criminally liable is through the doctrine of co-perpetration (*współsprawstwo*), which is codified in Article 18 § 1 KK. This statutory provision dictates that criminal liability applies not only to the individual who executes the prohibited act alone, but also to anyone who executes the act jointly and in agreement with another person.⁶

The foundational doctrine governing the assessment of co-perpetration in Polish criminal theory is the concept of "control over the act" (*panowanie nad czynem*).¹ A co-perpetrator is not required to personally execute every single statutory element of the prohibited act. Modern economic crimes frequently involve sophisticated structures where no single individual fulfills all elements of the offense. Consequently, the jurisprudence of the Supreme Court has heavily relied on the material-objective theory of co-perpetration, which validates the concept of a strict division of roles (*podział ról*).⁸

In a typical division of roles within a fraudulent enterprise, one individual may provide the formal, administrative, and legal framework necessary to interact with the legitimate economy. In this case, Mateusz provides the registered JDG, the active NIP number, and the corporate

bank account capable of receiving large commercial transfers. The other individual, Waldek, executes the operational reality of the enterprise. This operational execution involves managing the client interface, controlling the corporate communications infrastructure, generating the underlying narrative for the transactions, and executing the "delay tactics" necessary to maintain the deception post-payment.⁸

Waldek fundamentally qualifies as a co-perpetrator because his contribution was not marginal or auxiliary; it was the essential, driving force behind the realization of the criminal plan. Without his active, sustained engagement with the victim, the detrimental disposition of the 155,000 PLN would not have occurred. The requisite elements to establish his *panowanie nad czynem* (control over the act) include the following:

First, there must be a joint agreement (*porozumienie*). This agreement is the psychological bond between the perpetrators, allowing their individual actions to be legally attributed to one another. The Supreme Court acknowledges that this does not require an explicit, written contract, nor even a detailed verbal articulation between the parties. Tacit, implicit agreements (*porozumienie dorozumiane*), where parties act synchronously and purposefully toward a shared criminal goal (*communi auxilio* and *communi consilio*), are entirely sufficient to establish the requisite criminal agreement.⁷

Second, there must be an essential contribution to the execution of the crime. By exclusively handling the correspondence, engineering the contradictory narratives regarding the missing components, and personally issuing the false refund promises, Waldek directly executed the *wprowadzenie w błąd* (active deception) element of Article 286 § 1 KK.³ Even though he did not formally issue the proforma invoice or own the recipient bank account, his dominance over the communicative aspect of the fraud confirms his co-perpetration. Supreme Court rulings dictate that a co-perpetrator responsible for the whole crime is also the person who, while not fulfilling a specific activity-based statutory mark formally, provides a contribution so vital that without it, the act would not have occurred in its given shape.¹⁰

Directing Perpetration (Sprawstwo Kierownicze)

As an alternative primary theory, Article 18 § 1 KK introduces the concept of directing perpetration (*sprawstwo kierownicze*).⁶ This distinct phenomenal form of committing a crime applies to an individual who directs the execution of a prohibited act by another person, often from a position of organizational or factual superiority.¹¹

The physical and geographical realities of the present case are highly relevant here. Mateusz resides and works full-time in a factory in the Netherlands. It is logistically and practically implausible that he is simultaneously managing the day-to-day operations, client acquisitions, and technical specifications of a highly specialized custom-PC business located in Kraków. If the ensuing criminal investigation confirms that Mateusz acted merely as a "straw man" (*śłup*)—lending his identity and formal business registration for a fee, or perhaps out of familial obligation—while Waldek made all strategic, financial, and operational decisions, Waldek ascends to the role of a directing perpetrator.¹²

The directing perpetrator wields the ultimate command over the entire criminal enterprise. They possess the decisive authority to determine when the criminal activity begins, the specific

modalities of its operation, and the moment it ceases. In such a scenario, the individual executing the formal acts (Mateusz) becomes an instrument in the hands of the directing perpetrator (Waldek). Establishing this dynamic effectively bypasses the formal corporate registration, placing the apex of criminal liability squarely on the de facto operator.

Fallback Theories: Incitement and Facilitation (Art. 18 § 2 & § 3 KK)

Should the prosecutor adopt a highly conservative interpretation of the evidence and conclude that the threshold for co-perpetration or directing perpetration is not definitively met—for instance, if Waldek successfully mounts a defense arguing he was merely following Mateusz's explicit instructions without full comprehension of the overarching fraudulent scheme's origin—the legal strategy must pivot to the fallback positions of incitement (*podżeganie*) and facilitation (*pomocnictwo*).

Incitement, defined in Article 18 § 2 KK, establishes liability for an individual who, wanting another person to commit a prohibited act, actively induces or persuades them to do so.⁶ If investigative efforts reveal that Waldek originally conceived the fraudulent enterprise and subsequently convinced Mateusz to lend his JDG registration to facilitate the scheme, Waldek satisfies the criteria for an inciter.¹³ Incitement requires direct intent (*zamiar bezpośredni*); the inciter must specifically desire the commission of the offense by the direct perpetrator.¹¹

Facilitation, governed by Article 18 § 3 KK, establishes liability for an individual who, with the intent that another person commits a prohibited act, facilitates its commission through their behavior.⁶ Facilitation can manifest in two primary forms: material (physical) and psychological. Material facilitation includes providing the tools or means necessary for the crime, such as managing the email servers, configuring the digital infrastructure, or drafting the deceptive communications. Psychological facilitation involves providing advice, instructions, or reinforcing the direct perpetrator's resolve to execute the fraud.¹¹

From a purely civil recovery perspective, the precise classification of Waldek's criminal participation—whether as a co-perpetrator, directing perpetrator, inciter, or facilitator—is of minimal consequence. As will be comprehensively detailed in Part III of this report, all these phenomenal forms of criminal participation trigger the identical mechanism of full joint and several civil liability for the entirety of the financial damage.¹³

The Principle of Individualization of Circumstances (Art. 21 § 2 KK)

A complex nuance in prosecuting economic crimes involving corporate entities is the attribution of specific personal traits or circumstances to co-participants. Article 21 of the Penal Code governs the principles of individualization of criminal responsibility.¹⁵

Paragraph 2 of this article specifically mandates that if a personal circumstance concerning one perpetrator—which influences the criminality or the severity of the act—constitutes a statutory element of the prohibited act, the co-participant is subject to the criminal liability provided for that specific act, provided they were aware of this circumstance, even if it did not concern them directly.¹⁵

While basic fraud under Article 286 § 1 KK is a common crime, the specific execution often relies heavily on the formal status of the perpetrator, such as their status as a registered

business entity capable of issuing legally binding VAT or proforma invoices. In the context of the present economic fraud, the primary formal perpetrator (Mateusz) utilizes his legal status as a registered business owner to project an aura of legitimacy, thereby facilitating the deception. Waldek, fully cognizant of this status and actively leveraging the JDG's formal standing to execute the fraud, is fully liable for the act in its specific commercial context. The defense argument that the invoice and the formal business registration do not bear Waldek's personal name is entirely neutralized by the application of Article 21 § 2 KK. The law ensures that individuals cannot shield themselves behind the formal characteristics of their co-conspirators if they knowingly exploit those characteristics to execute a joint criminal enterprise.¹⁵

Part II: Evidentiary Mapping for the Prosecutor

To successfully charge Waldek, the prosecutor cannot rely on abstract legal theory alone; they must construct an airtight chain of circumstantial and direct evidence that inextricably links Waldek to both the subjective intent (*wina umyślna, zamiar bezpośredni kierunkowy*) and the objective act of deception. The raw facts currently available must be strategically curated and explicitly mapped to the required statutory elements to demonstrate the viability of the prosecution.

The following table provides a rigorous alignment of the existing evidentiary record with the corresponding doctrines of Polish criminal law, demonstrating the prosecutorial significance of each fact.

Evidentiary Fact	Applicable Legal Doctrine (KK)	Prosecutorial Significance
Dual-Mailbox Synchronization: On 10.03.2026, identical refund promises were dispatched exactly one minute apart from both the root administrative address (gpucomputer@) and the personal address (waldek@).	<i>Panowanie nad czynem</i> (Control over the Act) under Art. 18 § 1 KK. ¹	This digital footprint eviscerates the defense that Waldek was a low-level, subordinate employee. Subordinates do not hold concurrent administrative control over root corporate infrastructure while coordinating synchronized messaging across distinct digital identities. This proves systemic, architectural control over the entity's external interface, demonstrating absolute operational

		dominance.
Contradictory Causal Explanations: On 24.02.2026, the narrative was "customs cleared the goods today." On 13.05.2026, the narrative shifted entirely to "a Hong Kong supplier went bankrupt."	<i>Wprowadzenie w błąd</i> (Active Deception) under Art. 286 § 1 KK. ²	This contradiction constitutes the definitive proof of <i>dolus directus</i> (direct intent to deceive). A legitimate, objective business failure possesses a singular, verifiable factual reality. The fabrication of a localized "customs clearance" event, followed months later by an incompatible story concerning an international supplier bankruptcy, proves the active invention of facts designed strictly to manipulate the victim's perception and delay legal action.
Issuance of Personal Refund Promises: Waldek personally authored and repeatedly issued unfulfilled promises to refund the 155,000 PLN.	<i>Oszustwo bierne</i> / Continuation of the Crime (Passive Fraud / Maintenance of Error). ³	The crime of fraud is not confined to the initial inducement; it encompasses the active maintenance of the victim's erroneous state to prevent them from seeking immediate legal recourse, reversing the financial transfer, or alerting law enforcement.³ By issuing baseless refund promises, Waldek actively participated in the post-transaction cover-up, solidifying his role as an integral co-perpetrator embedded deeply within the execution phase of the

		scheme.
Geographic Disparity and Brand Co-publishing: Mateusz resides full-time in the Netherlands. Waldek has co-published the "3dkrakow" brand on the JDG's domain since 2016.	<i>Podział ról</i> (Division of Roles) and Premeditated Structure.⁸	This contextual data destroys the superficial documentary reality of the invoice. It establishes the geographic impossibility of Mateusz physically manufacturing custom workstations in Kraków while employed in a Dutch factory. Furthermore, the decade-long co-branding demonstrates a sustained, intertwined operational history, proving that Waldek's involvement was not an isolated incident or temporary assistance, but rather a structured, long-term business methodology characteristic of organized economic offenses.

Evidentiary Mapping: Aligning Case Facts with Criminal Statutes

EVIDENTIARY FACT	APPLICABLE LEGAL DOCTRINE	PROSECUTORIAL SIGNIFICANCE
10.03.2026 identical emails 1 min apart from root and waldek@	Panowanie nad czynem / Art. 18 § 1 KK	Proves ultimate operational control over the entity's communication infrastructure.
Customs vs. HK Supplier stories	Wprowadzenie w błąd / Art. 286 § 1 KK	Demonstrates active deception and <i>dolus directus</i> ; a legitimate business failure only has one factual reality.
Personal refund promises	Oszustwo bierne / Maintaining the error	Proves ongoing participation to delay victim action.
Mateusz in NL, Waldek co-branding 3dkrakow since 2016	Podział ról / Division of Roles	Establishes the historical and geographic reality of the de facto operation.

This matrix details how the collected evidence satisfies the prosecutorial burden of proof for both the objective actions (*actus reus*) and subjective intent (*mens rea*) required to charge Waldek as a co-perpetrator of fraud.

Data sources: Chmielniak (Art. 286 KK), Kancelaria KARH, Adwokat Skoczylas, Gov.pl (Communi Consilio), Sąd Najwyższy (SN).

The aggregation of this evidence forms a compelling narrative for the prosecutor. It transitions the case from a standard, non-actionable civil breach of contract regarding undelivered goods into a clear-cut investigation of systemic, premeditated economic fraud. The digital forensics of the email synchronization alone present a formidable hurdle for any defense attempting to distance Waldek from the core operations of the JDG.

Part III: The Civil Bridge – Translating Criminal Guilt into Civil Recovery

The initial legal counsel provided—stating that there is no basis to pursue Waldek civilly at this

stage—is technically correct solely when viewing the dispute through the rigid paradigm of contract law. Because the contractual offer, acceptance, and payment were formalized with Mateusz's JDG, the principle of privity of contract strictly limits contractual claims to Mateusz. However, the initiation of a criminal investigation fundamentally alters the legal landscape. It builds a permanent bridge to an entirely different and highly advantageous realm of civil jurisprudence: liability *ex delicto* (tort liability).

If the criminal process establishes Waldek's culpable participation in the fraud, the contractual barrier evaporates entirely. The foundational basis for financial recovery shifts from "damages arising from a breach of contract" to "damages arising from the commission of a prohibited act" (*czyn niedozwolony*). This shift is transformative for the prospects of asset recovery.

The Power of Articles 422 and 441 of the Civil Code (KC)

Article 422 of the Civil Code (*Kodeks cywilny*, hereafter KC) is the foundational pillar of the civil bridge. This provision explicitly and intentionally expands the circle of individuals liable for civil damages far beyond the direct, formal perpetrator of the act. The statute dictates that liability for damage lies not only with the individual who directly caused it, but also with anyone who incited another to cause the damage, anyone who was helpful in causing it, and anyone who knowingly benefited from the damage caused to another.¹³

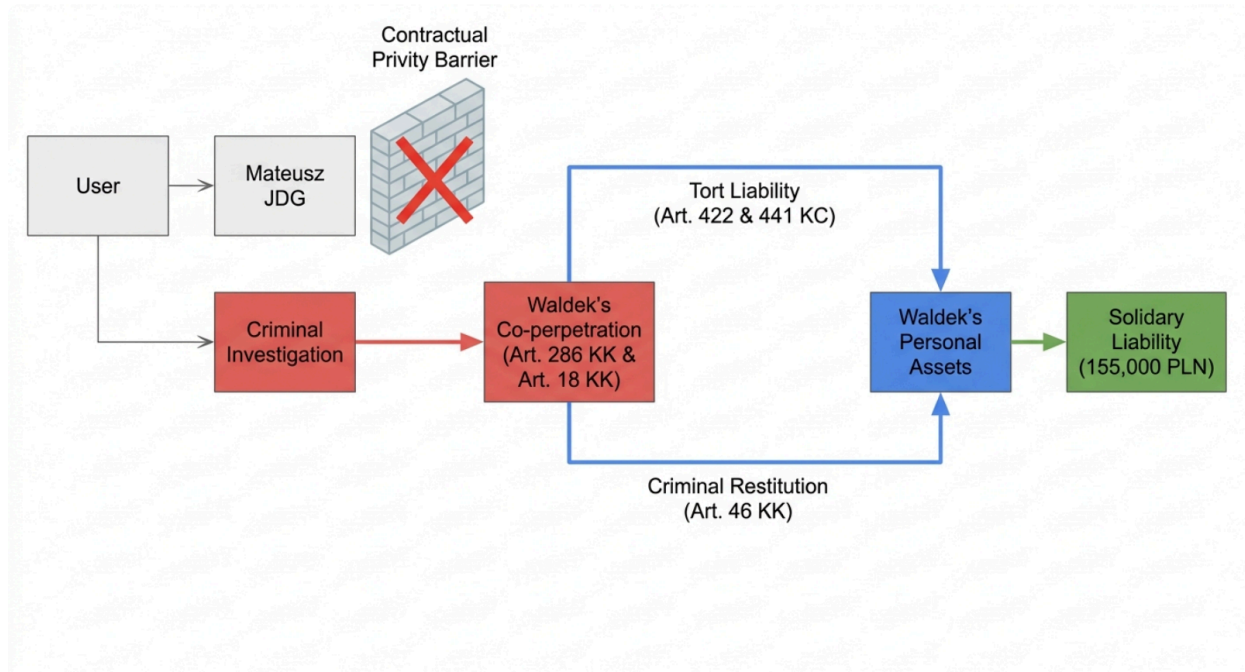
This legislative expansion ensures that if the prosecutor classifies Waldek as a co-perpetrator (*współsprawca*), a directing perpetrator (*sprawca kierowniczy*), an inciter (*podżegacz*), or even merely a helper (*pomocnik*), Waldek immediately falls under the stringent jurisdiction of Article 422 KC.¹³ The prerequisite for invoking this article is establishing fault (*wina*) under the general tort rule of Article 415 KC, a requirement seamlessly fulfilled by a criminal finding of intentional fraud.¹³

Crucially, Article 441 § 1 KC dictates the nature of this expanded liability. It stipulates that if several persons bear responsibility for damage caused by a single tort, their liability toward the victim is joint and several (*odpowiedzialność solidarna*).¹³

The practical implications of solidary liability are profound. It empowers the creditor (the victim) to demand the entire sum of 155,000 PLN from Mateusz alone, from Waldek alone, or from both of them simultaneously. The choice rests entirely with the creditor. If you initiate enforcement proceedings against Waldek and recover the full amount from his personal assets, the debt is satisfied. You are entirely emancipated from the constraints of pursuing a potentially judgment-proof or geographically distant formal entity (Mateusz's JDG).¹³

Furthermore, a vital doctrine in Polish tort law regarding Article 422 KC is the absolute irrelevance of personal financial benefit. To hold a "helper" or "co-perpetrator" solidarily liable for the entire damage, the victim is not required to prove that the helper personally retained any portion of the misappropriated funds. Established jurisprudence explicitly states that the lack of direct financial benefit obtained by an inciter or helper from the tort committed by the direct perpetrator has absolutely no bearing on the existence, scope, or extent of their solidary compensatory liability.¹³ Even if Waldek funneled every single grosz of the 155,000 PLN directly to Mateusz, Waldek remains solidarily liable for the complete sum out of his personal estate.

The Civil Bridge: Bypassing Contractual Privity Through Tort Liability



The diagram illustrates how a criminal finding of fraud shatters the contractual barrier. By utilizing Art. 422 and 441 of the Civil Code, or Art. 46 of the Penal Code, the victim can pursue the de facto operator's personal assets directly, holding them jointly and severally liable alongside the registered entity.

Criminal Restitution (Art. 46 KK)

The most direct, legally efficient, and cost-effective mechanism embedded within the civil bridge is Article 46 § 1 KK. This article mandates that in the event of a criminal conviction, the court may—and upon the formal motion of the victim or another authorized person, absolutely must—order the obligation to repair the damage caused by the crime in whole or in part, applying the rules of civil law.¹

The application of Article 46 KK to co-perpetrators is exceptionally powerful. The Supreme Court routinely and consistently affirms that the obligation to repair damage under Article 46 KK can, and generally should, be adjudicated solidarily against all convicted co-perpetrators of the crime.²⁴ If Waldek is convicted alongside Mateusz, the criminal court will embed within its penal judgment a civil order requiring them both, solidarily, to repay the full 155,000 PLN to the victim.

The procedural advantages of utilizing Article 46 KK cannot be overstated. By securing restitution within the criminal proceeding, the victim avoids the necessity of filing a separate, parallel civil lawsuit. This circumvents the mandatory 5% civil court filing fee (which would

amount to 7,750 PLN in this case) and saves years of protracted civil litigation. The final criminal verdict containing the Article 46 KK order automatically becomes an enforceable title (*tytuł egzekucyjny*). Once stamped with an enforcement clause by the court, it functions identically to a civil judgment and can be immediately forwarded to a bailiff (*komornik*) for asset seizure.²²

The Binding Effect of a Criminal Conviction (Art. 11 KPC)

There are procedural scenarios where a criminal court might not award the full 155,000 PLN under Article 46 KK. This can occur if the criminal court calculates the direct damage differently, applies a statutory reduction, or issues a partial punitive restitution (*nawiązka*) due to evidentiary complexities regarding the exact tracing of the funds.²³ In such instances, the victim must initiate a supplementary civil suit to recover the remaining balance.

In this subsequent civil litigation, Article 11 of the Code of Civil Procedure (*Kodeks postępowania cywilnego*, hereafter KPC) acts as an insurmountable evidentiary weapon for the plaintiff.²³ Article 11 KPC establishes the principle of *prejudykat*, stating unequivocally that the findings of a final, *prawomocny* (binding) convicting criminal judgment regarding the commission of a crime absolutely bind the court in civil proceedings.²⁶

The scope of this binding effect is comprehensive. The civil court is legally prohibited from second-guessing or re-litigating whether Waldek actually committed the fraud. The findings regarding his fault, his subjective intent, and the specific deceptive acts he executed are established absolutely and cannot be challenged in the civil arena.²⁷

A highly nuanced but critical area of Supreme Court jurisprudence concerns whether the civil court is bound specifically by the *amount* of the financial damage stated in the criminal verdict. The general rule in Polish civil procedure is that the specific amount of damage is a secondary finding, and the civil court retains the autonomy to quantify the loss independently.²⁷ However, a vital exception exists. In crimes where the occurrence and the specific scale of the damage belong to the *very essence of the crime* (its statutory marks)—such as Article 286 KK fraud, where the exact quantum of the "unfavorable disposition of property" defines the core of the offense—the civil court is indeed bound by the financial amount established in the *sententia* of the criminal verdict, unless definitive proof of subsequent partial repayment is presented.²⁸

The result of this doctrine is definitive: A criminal conviction of Waldek for participating in a fraud resulting in a 155,000 PLN disposition means that a subsequent civil trial is largely a procedural formality designed to secure the execution writ. Waldek is stripped of the ability to contest his underlying liability or the principal quantum of the debt owed.

Part IV: Strategic Filing of the Criminal Notification (Zawiadomienie)

A critical tactical decision at the inception of the criminal process is whether to explicitly name Waldek as a suspected co-perpetrator in the formal notification of a suspected crime (*zawiadomienie o podejrzeniu popełnienia przestępstwa*), or to name only the formal JDG owner (Mateusz) and passively allow the investigative authorities to "discover" Waldek's involvement organically.

The definitive recommendation based on Polish criminal procedure is to name Waldek from the

outset as a suspected co-perpetrator, detailing his specific actions.

Advantages of Explicitly Naming Waldek

First, naming Waldek sets the necessary investigative trajectory immediately. Polish prosecutors and police departments manage overwhelming caseloads. If the notification only names Mateusz, the initial investigative inertia will be rigidly channeled toward a registered entity and an individual located in the Netherlands. It may take months, if not longer, for the police to trace the digital footprint back to Kraków and identify Waldek's role. By presenting the comprehensive evidentiary matrix (the dual mailboxes, the contradictory narratives, the geographical realities) directly in the *zawiadomienie*, you provide the prosecutor with a pre-packaged, viable theory of the crime. This greatly accelerates the investigative timeline and forces an immediate focus on the actual locus of the operation.³³

Second, it preempts the "clueless employee" defense strategy. If Waldek is approached late in the investigation merely as a "witness" regarding Mateusz's company, he will be afforded ample time and psychological space to construct a sanitized defense narrative, likely claiming he was a low-level, administrative employee blindly executing Mateusz's directives. By explicitly naming him as a suspect, you force the authorities to interrogate him under the stricter procedural rigors of a suspect interview. This allows law enforcement to deploy tactical interrogation techniques designed specifically to uncover contradictions in a prepared narrative, a process much less effective when questioning a mere witness.³³

Third, naming both individuals immediately forces the prosecuting authorities to recognize the high risk of collusion and obstruction of justice (*matactwo*). Recognizing this risk significantly increases the likelihood that the police will execute simultaneous, coordinated actions to secure electronic devices and communication records from Waldek's physical location in Kraków, thereby preventing the systematic destruction of internal correspondence that proves the conspiracy.

Disadvantages of Explicitly Naming Waldek

The sole notable disadvantage is the forfeiture of the element of surprise. By naming Waldek, he will likely become aware of his legal peril sooner, affording him the opportunity to retain specialized defense counsel early in the process. However, given that the commercial transaction has entirely collapsed, deadlines have passed, and multiple refund promises have been definitively broken, any theoretical element of surprise has already dissipated. Waldek almost certainly anticipates impending legal or administrative action. The procedural and investigative benefits of forcefully directing the prosecutor's focus toward the de facto operator far outweigh this minimal strategic drawback.

When drafting the *zawiadomienie* under Article 119 of the Code of Criminal Procedure (KPK), it is imperative that the description of the event details the specific, granular actions of *both* individuals, carefully articulating the probable division of roles that characterized the enterprise.³⁴

Part V: Non-Criminal Civil Theories (Piercing the Veil

Directly)

While initiating the criminal route is undeniably the most potent strategy, it remains subject to prosecutorial discretion. If the prosecutor ultimately decides to discontinue the investigation (*umorzenie postępowania*), perhaps arguing that the matter constitutes a purely civil breach of contract without sufficient, incontrovertible proof of prior criminal intent at the exact moment the contract was formed, reliance on purely civil theories becomes necessary to reach Waldek's assets. The following is an objective assessment of the viability of these non-criminal civil theories.

1. The Doctrine of *Firmanctwo* (Art. 55 KKS & Art. 415 KC)

Assessment of Strength: Moderate to High (Contingent on engagement by tax authorities).

The concept of *firmanctwo* (the concealment of actual business activity) occurs when an individual (the *firmant*, representing the actual operator—Waldek) conducts business operations utilizing the name, firm, and formal registration of another person (the *firmujący*, representing the "straw man"—Mateusz) specifically to hide their actual operations or the true scale of their commercial activities.³⁵

Mechanistically, *firmanctwo* is primarily classified as a fiscal crime under Article 55 of the Penal Fiscal Code (KKS), designed fundamentally to combat tax evasion. However, successfully establishing that Waldek is the actual operator (*firmant*) fundamentally alters the civil liability landscape.¹² Under the strict provisions of Article 113 of the Tax Ordinance (*Ordynacja podatkowa*), the individual lending their name (*firmujący*, Mateusz) and the actual operator (*firmant*, Waldek) bear absolute, solidary liability for all tax arrears generated by the concealed enterprise, enforceable against their entire personal estates.³⁸

The translation of this fiscal liability into civil recovery for a private party involves invoking Article 415 KC (general tort liability based on fault). The legal argument posits that Waldek's deliberate operation of an illegal *firmanctwo* constituted a culpable, illicit act that directly circumvented normal commercial safeguards and directly caused the financial loss of 155,000 PLN.³⁸

The primary challenge with this theory lies in the burden of proof. Proving the complex internal dynamics of *firmanctwo* in a standard civil court without prior, definitive findings from the tax administration (*Urząd Skarbowy*) is exceptionally difficult. To successfully leverage this theory, it would likely be necessary to first formally notify the tax authorities of the suspected *firmanctwo*, trigger a comprehensive fiscal audit, and subsequently introduce the finalized findings of that audit as binding evidence to support the civil tort claim.

2. General Delictual Liability for Deceit (Art. 415 KC)

Assessment of Strength: Moderate.

Article 415 KC establishes the bedrock principle of fault-based liability in Polish civil law:

"Whoever by his fault causes damage to another is obliged to repair it".³⁹

Operating entirely independent of criminal proceedings, a civil lawsuit can be filed directly

against Waldek for the commission of an intentional tort. Success requires the plaintiff to independently prove three strict elements: fault (Waldek's intentional deceit via the manufacturing of false explanations and unfulfilled promises), the occurrence of specific damage (the loss of 155,000 PLN), and the existence of an adequate causal link (*adekwatny związek przyczynowy*) between Waldek's deceptive actions and the financial loss.

The significant challenge here is that the civil standard of proof, governed by Article 6 KC, rests entirely on the plaintiff. Waldek's primary defense strategy will inevitably involve invoking his status as a mere representative, consultant, or employee of the formally registered JDG, thereby attempting to push liability back behind the corporate veil of Mateusz's business. Overcoming this defense requires assembling overwhelming evidence to convince the civil judge that Waldek's individual actions were independently tortious, malicious, and significantly exceeded the mere fulfillment of standard contractual duties on behalf of an employer.

3. Falsus Procurator (Art. 103 KC)

Assessment of Strength: Weak.

This theory relies on suing Waldek under the premise that he acted as a false representative (*falsus procurator*), lacking actual, legal authorization from Mateusz to enter into binding contracts, accept funds, or make definitive promises on behalf of the JDG.⁴¹

Under the mechanism of Article 103 § 3 KC, if an individual acts without proper authority, they can be held liable for damages.⁴² Furthermore, if their unauthorized actions were intentionally malicious or designed to deceive, liability can extend to broader compensatory damages under Article 415 KC.⁴²

The critical vulnerability of this theory is how easily it can be defeated by the opposing parties. If Mateusz simply submits a statement to the court retroactively confirming that he fully authorized Waldek's actions and correspondence, the *falsus procurator* claim collapses instantly. Given their shared surname and highly probable familial or close conspiratorial connection, it is a virtual certainty that Mateusz would retroactively ratify Waldek's actions specifically to shield him from direct, personal civil liability.

4. Unjust Enrichment (Art. 405 KC)

Assessment of Strength: Very Weak.

The doctrine of unjust enrichment, codified in Article 405 KC, stipulates that a person who has gained a financial benefit at the expense of another without a valid legal basis is legally obligated to return that benefit.

To utilize this doctrine, the argument must assert that Waldek was unjustly enriched by the 155,000 PLN payment.

The insurmountable challenge with this approach is the paper trail. The funds were formally transferred to a bank account linked to Mateusz's registered NIP. Legally speaking, Mateusz's JDG was the entity enriched, and the transfer possessed a formal legal basis (the issued proforma invoice). Tracing the subsequent flow of those funds from Mateusz's business account directly into Waldek's personal, unregulated pockets requires a level of forensic financial accounting and access to banking records that is generally only accessible to

prosecutors during a formal criminal investigation. Without irrefutable documentary proof that Waldek directly absorbed the specific funds into his personal estate, a civil claim for unjust enrichment against him is destined to fail.

Synthesis

The legal architecture necessary to bypass the corporate veil and hold the de facto operator, Waldek, personally liable for the 155,000 PLN is undeniably and inextricably rooted in the application of criminal law. The contractual barrier shielding him remains impenetrable only if the dispute is artificially confined to the parameters of a standard civil breach of contract regarding undelivered electronics.

By aggressively pursuing a criminal charge of fraud under Article 286 § 1 KK, and explicitly demonstrating Waldek's controlling or co-perpetrating role under Article 18 § 1 KK through the meticulous presentation of the established evidentiary matrix—specifically the dual mailbox control, the fabrication of contradictory narratives, and the geographical reality of the operation—the necessary "civil bridge" is constructed. A successful criminal investigation acts as a catalyst, instantly activating the potent joint and several liability provisions of tort law under Articles 422 and 441 KC, alongside the mandatory restitution mechanisms of Article 46 KK. Therefore, the *zawiadomienie* must be drafted with precision, targeting Waldek's operational dominance from the very first page, thereby forcing the investigative apparatus to look past the documentary facade and hold the true architect of the enterprise fully accountable.

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